

Court No. - 3

Case :- WRIT - C No. - 9499 of 2022

Petitioner :- Ram Kaval Alias Ram Kewal Chauhan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjay Kumar Yadav

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"(i) Issue, order or direction in the nature of writ of certiorari, quashing the order dated 10.09.2021 passed by the respondent no.2 /Executive Engineer/Prescribed Authority, Electricity Distribution, Division-II, U.P. Power Corporation Limited, Azamgarh, referring the matter to the respondent no.4/District Magistrate, Azamgarh for recovery of dues and cost to the sum of Rs. 2,43,177/- regarding the connection No. 751721321211 as arrears of land revenue in terms of Section 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 on form-II as prescribed under the U.P. Government Electrical Undertaking (Dues Recovery) Rules, 1958.

(ii) Issue, order or direction in the nature of writ of mandamus issuing direction upon the respondents, not to harass and to take coercive measure against the petitioner, in pursuance to the aforementioned recovery order."

Learned counsel for the respondent No 2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.5.2022

T.S.